

GINSBURG, J., dissenting

however, to resolve whether Mesa’s conduct violated the Fifth Amendment, concluding that, in any event, Mesa was entitled to qualified immunity. 785 F. 3d, at 120–121.

This Court vacated the Court of Appeals’ judgment and remanded with several instructions. First, the Court directed the Court of Appeals to address the “antecedent” question whether the suit could be premised on *Bivens* in light of the Court’s recent decision in *Ziglar v. Abbasi*, 582 U. S. 120, 126 (2017). *Hernández*, 582 U. S., at 553. The Court also identified error in the Court of Appeals’ qualified-immunity analysis. *Id.*, at 553–554. That analysis had centered on Hernández’s status as an alien with no significant connections to the United States, but it is “undisputed . . . that Hernández’s nationality and the extent of his ties to the United States were unknown to Mesa at the time of the shooting.” *Id.*, at 554. The Court declined to address whether Hernández had stated a valid Fourth Amendment claim. *Ibid.* But see *id.*, at 556–562 (BREYER, J., dissenting).

On remand, the Court of Appeals, again sitting en banc, affirmed the District Court’s dismissal of the suit. The action presented a “new context” for *Bivens*, the court concluded, and special factors counseled its hesitation. 885 F. 3d 811, 816–823 (CA5 2018). Dissenting, Judge Prado (joined by Judge Graves) urged that the majority had been “led astray from the familiar circumstances of this case by empty labels of national security, foreign affairs, and extra-territoriality.” *Id.*, at 825.

II

The plaintiff in *Bivens* alleged that, during an unjustified search of his home, rogue federal law enforcement officers unlawfully seized him, employing “unreasonable force . . . in making the arrest.” 403 U. S., at 389. This Court afforded

tiny. *Boumediene v. Bush*, 553 U. S. 723, 759–760 (2008) (quoting *Verdugo-Urquidez*, 494 U. S., at 278 (Kennedy, J., concurring)).